

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-03

ONE BANANA NORTH AMERICA CORP.,
COMPLAINANT

v.

HAPAG-LLOYD AG and
HAPAG-LLOYD (AMERICA) LLC,
RESPONDENTS.

**JOINT STATUS REPORT AND
PROPOSED SCHEDULE**

Pursuant to 46 C.F.R. Section 502.141 and the Chief Administrative Law Judge's September 9, 2022, Order On Joint Motion for Stay of Deadlines in this action, Complainant, One Banana North America Corp., ("OBNA") and Respondents Hapag-Lloyd AG and Hapag-Lloyd (America) LLC ("Hapag-Lloyd") (each a "Party" and, collectively, the "Parties"), by their respective undersigned counsel, jointly write to inform the Chief Administrative Law Judge that the Parties have not been able to come to a final agreement to settle this action. Accordingly, the Parties propose the following schedule:

October 17, 2022	Target for substantial completion of productions of documents and ESI in response to initial RFPs.
October 17, 2022	Target for exchange of privilege logs.
November 15, 2022	Target to complete depositions of fact witnesses.
November 20, 2022	Disclosure of initial expert reports.
November 22, 2022	Last day to serve discovery requests.

November 28, 2022	Disclosure of rebuttal expert reports.
December 5, 2022	Complete expert depositions.
December 5, 2022	Close of all discovery.
December 20, 2022	Complainant's brief, proposed findings of fact, and appendix.
January 16, 2023	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
January 23, 2023	Complainant's reply brief and responses to proposed findings of fact.

Dated: October 14, 2022

Respectfully submitted,

FISHERBROYLES, LLP

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*Counsel for Respondents Hapag-Lloyd A.G. and
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*Counsel for Complainant ONE BANANA
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CERTIFICATE OF SERVICE

I certify that on October 14, 2022, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of January 26, 2022 as follows:

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